ble for an act not done by himself, but by the Court. It is the duty, however, of the trustee to fully inform the Court of all the material facts within his knowledge, and if [*360] he *improperly withheld them, he would be made responsible for the results of his suppression of facts.

[49. Where a settlement is executed in contemplation of an intended marriage, which is never solemnized, or of a marriage which is annulled on the ground of impotency, the trustees of the settlement will be ordered to reconvey the trust property to the settlor discharged from the trusts (*a*).]

50. **36 Geo. 3, c. 52.** — By 36 G. 3, c. 51, s. 32, *executors and administrators*, where legatees or next of kin are *infants*, or *beyond seas*, may pay the legacies or shares into Court (*b*), and by 45 G. 3, c. 28, s. 7, the provisions of the former Act are extended to trustees and owners of *real estate* charged with *legacies*.

51. **10 & 11 Vict. c. 96.** — By 10 and 11 Vict. c. 96, entitled "An Act for better securing trust funds and for the relief of trustees," it is enacted:

I. That all *trustees, executors, administrators, or other persons having in their hands any moneys belonging to any trust whatever*, or the major part of them, shall be *at liberty on filing an affidavit shortly describing the instrument creating the trust*, to pay the same into the Bank of England, to the account of the *particular trust*, subject to the order of the Court of Chancery, and that all trustees or other persons having any *annuities or stocks* of the Bank of England, of the East India Company, or South Sea Company, or any Government or Parliamentary securities standing in their names, or in the names of any deceased persons of whom they shall be personal representatives, upon any trust, or the

land *v.* Lord Tredegar, 35 Beav. 256; Lowndes *v.* Williams, 24 L. T. N. S. 465.

[(*a*) Essery *v.* Cowlard, 26 Ch. D. 191; Addington *v.* Mellor, 33 W. R. 232.]

[(*b*) It has been held that under this Act it is the duty of executors to pay an infant's legacy into Court, and that they are not justified in investing the legacy in Consols and accumulating it at compound interest, Rimell *v.* Simpson, 18 L. J. N. S. Ch. 55; but it may well be doubted whether this decision would now be followed, as a trustee may properly deal with a fund out of Court in the same manner as the Court would have dealt with it if under its control.]